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JUDGMENT W.P.(C) 135 OF 1970 Appellants: His Holiness **Kesavananda Bharati** Sripadagalvaru and Ors.
Vs. Respondent: State of Kerala and Anr.

Decided On: 24.04.1973 Hon'ble Judges:

S.M. Sikri, C.J., A.N. Grover, A.N. Ray, D.G. Palekar, H.R. Khanna, J.M. Shelat, K.K. Mathew, K.S. Hegde M.H. Beg, P. Jaganmohan Reddy, S.N. Dwivedi and Y.V. Chandrachud, JJ.

JUDGMENT S.M. Sikri, C.J.

1. I propose to divide my judgment into eight parts. Part I will deal with Introduction;

Part II with interpretation of Golakhnath case; Part III with the interpretation of the original [Article 368](#), as it existed prior to its amendment; Part IV with the validity of the [Constitution \(Twenty-fourth Amendment\) Act](#);

Part V with the validity of [Section 2](#) of the Constitution (Twenty-fifth Amendment) Act; Part VI with the validity of [Section 3](#) of the Constitution (Twenty-fifth Amendment) Act; Part VII with Constitution (Twenty- ninth Amendment) Act; and Part VIII with conclusions.

PART I-Introduction

2. All the six writ petitions involve common questions as to the validity of the Twenty- fourth, Twenty-fifth and Twenty-ninth Amendments of the Constitution. I may give a few facts in Writ petition No. 135 of 1970 to show  how the question arises in this petition. Writ Petition No. 135 of 1970 was filed by the petitioner on March 21, 1970 under [Article 32](#) of the Constitution for enforcement of his fundamental rights under [Articles 25, 26, 14, 19\(1\)\(f\) and 31](#) of the Constitution. He prayed that the provisions of the [Kerala Land Reforms Act, 1963](#) (Act 1 of 1964) as amended by the [Kerala Land Reforms \(Amendment\) Act 1969](#) (Act 35 of 1969) be declared unConstitutional, ultra vires and void. He further prayed for an appropriate writ or order to issue during the pendency of the petition. This Court issued rule nisi on March 25, 1970.